

Thus, since the agreement fails to provide for several of the protections required under *Armendariz*, the court intends to find that it is substantively unconscionable. Furthermore, the court will not sever the offending provisions, as the agreement fails to provide for at least three separate protections under *Armendariz*. In effect, the agreement is so permeated with unconscionability that the court would have to re-write the agreement in order to eliminate the unconscionable provisions.²

As a result, the court intends to find that the entire agreement is unconscionable and unenforceable, and it will deny defendant's motion to compel plaintiff to attend arbitration. The court will also deny defendant's motion to stay the pending court action.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 6/25/2026.
(Judge's initials) (Date)

² Defendant has argued that *Armendariz* does not apply to plaintiff because he is a sophisticated independent contractor rather than an employee, and thus he does not require the type of protections provided for in *Armendariz*. However, at least one Court of Appeal has held that the fact that plaintiffs were independent contractors rather than employees does not make a difference, and that *Armendariz*'s protections still applied to their claims. (*Wherry v. Award, Inc.* (2011) 192 Cal.App.4th 1242, 1249.) This court agrees that the fact that Dr. Cook is an educated and sophisticated party does not necessarily mean that he is not entitled to the protections under *Armendariz*. Defendant is a large and sophisticated corporation that had superior bargaining power. It drafted the arbitration agreement with several terms that are likely give it an unfair advantage in arbitration, including limited discovery, limited remedies, lack of ability to recover attorney's fees, and imposition of arbitration costs on both parties rather than on defendant alone. Thus, the court intends to find that *Armendariz* applies to plaintiff, regardless of his status as an independent contractor rather than an employee.

(37)

Tentative Ruling

Re: ***Hicks v. Jackson***
Superior Court Case No. 23CECG04303

Hearing Date: July 1, 2026 (Dept. 503)

Motion: By Defendant for Owelty Lien and Accounting

Tentative Ruling:

To deny, without prejudice. (Code Civ. Proc., § 1005.)

Explanation:

On June 18, 2026, defendant filed and served a Notice and Motion for Owelty Lien and Accounting. Unless otherwise ordered, "all moving and supporting papers shall be served and filed at least 16 court days before the hearing." (Code Civ. Proc., § 1005, subd. (b).) Here, the motion is untimely as it was filed and served just eight court days before the hearing date. (See Code Civ. Proc., § 12.) As such, the motion is denied, without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 6/29/2026.
(Judge's initials) (Date)